conclusion on this basis, it decided not to consider the issue of whether the Communal G.O. also violated Article 15.

Four aspects of the Supreme Court's decision were particularly striking. First, the court expressed unease with – but eventually chose to overlook – the fact that one of the litigants, Champakam Dorairajan, did not actually apply for admission.[20] She was effectively representing the group rights of her community (Brahmins) rather than her individual rights.[21] This is arguably among the early antecedents of a disquieting feature of modern public interest litigation in India – where a party that has not itself suffered any injury brings a petition claiming to represent a separate (often amorphous) group of people. Second, Article 29 – which formed the basis of the court's decision – had the title 'protection of the interests of *minorities*'. The court did not engage with the question of how those at the top of the caste hierarchy could claim to be 'minorities'.[22] Third, the logic of the court's interpretation was that reservation was an exception to, rather than a facet of, the right to equality. A meaningful understanding of the right to equality should account for the different conditions and circumstances that people are born into. The court adopted a formal understanding of the right to equality, where (absent specific exceptions) everyone is assumed equal regardless of those conditions and circumstances. This meant that a specific constitutional provision authorizing reservation (such as Article 16[4]) was needed to establish an exception to the right to equality. 'Equality' and 'reservations' became opposites rather than correlatives. Fourth, the court could easily have arrived at the same conclusion without relegating the directive principles to secondary status. The eminent academic Professor P.K. Tripathi described this as 'the most damaging opinion expressed on the value and effectiveness of the directive principles'.[23]

The Supreme Court's decision prompted widespread agitation and protests across the state and in neighbouring areas. The finance minister of Madras travelled to Delhi hoping to persuade Prime Minister Nehru to overturn the decision and restore the Communal G.O. in its entirety. Despite the law ministry note from March, initial news reports indicated